

1                   **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2                               STATE OF OKLAHOMA

3                               2nd Session of the 60th Legislature (2026)

4   ENGROSSED SENATE  
5   BILL NO. 2028

                              By: Wingard, Bullard, Murdock,  
                              Deevers, Jett, and Frix of  
                              the Senate

6                                               and

7                                               Hardin of the House  
8

9  
10           An Act relating to the Oklahoma Milk and Milk  
11           Products Act; amending 2 O.S. 2021, Section 7-413,  
12           which relates to violations; expanding violations;  
13           requiring warning labels on containers of raw or  
14           unpasteurized milk and raw milk products; directing  
15           the Oklahoma Department of Agriculture, Food, and  
16           Forestry to develop and produce warning labels;  
17           requiring warning label to be affixed to certain  
18           products prior to sale or distribution; authorizing  
19           the Oklahoma Department of Agriculture, Food, and  
20           Forestry to promulgate rules; amending 2 O.S. 2021,  
21           Section 7-414, which relates to construction of act;  
22           allowing for certain sales of ungraded raw milk and  
23           raw milk products; restricting the advertisement of  
24           the sale of ungraded raw milk; increasing average  
             monthly yield for incidental sales; providing for  
             codification; and declaring an emergency.

20   BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

21           SECTION 1.           AMENDATORY           2 O.S. 2021, Section 7-413, is  
22   amended to read as follows:

23           Section 7-413. It shall be unlawful for any person to  
24   knowingly, willfully, or recklessly:

1        1. Attempt to produce, haul, process, or distribute milk or  
2 milk products without an appropriate and valid permit;

3        2. Sell, offer, or expose for sale as Grade A any adulterated  
4 or misbranded milk or milk product;

5        3. Sell, offer, expose for sale, or serve milk and milk  
6 products which have not been maintained at or below the temperature  
7 specified by the State Board of Agriculture;

8        4. Sell, offer, expose for sale, or serve raw milk or raw milk  
9 products without notifying the consumer that the product is not  
10 licensed, regulated, or inspected;

11        5. Sell, offer, expose for sale, or serve raw milk or raw milk  
12 products without labeling the container of such raw milk or raw milk  
13 products to indicate to the consumer that the product is raw or  
14 unpasteurized milk and the date the milk was filled in accordance  
15 with Section 2 of this act;

16        6. Dip or ladle Grade A milk and milk products;

17        ~~5.~~ 7. Transfer Grade A milk and milk products at any location  
18 other than a permitted Grade A facility designed and equipped for  
19 such purpose;

20        ~~6.~~ 8. Prevent, interfere, or attempt to impede the Commissioner  
21 of Agriculture from investigating and enforcing the Oklahoma Milk  
22 and Milk Products Act;

1       ~~7.~~ 9.   Sell or serve Grade A milk and milk products from other  
2 than the individual container, or approved bulk dispenser, received  
3 from the distributor; or

4       ~~8.~~ 10.   Violate any provision of the Oklahoma Milk and Milk  
5 Products Act.

6       SECTION 2.       NEW LAW       A new section of law to be codified  
7 in the Oklahoma Statutes as Section 7-413.1 of Title 2, unless there  
8 is created a duplication in numbering, reads as follows:

9       A.   Any container of raw milk or raw milk products sold, offered  
10 for sale, or distributed shall be labeled with a visible warning  
11 label and the date the milk was filled in accordance with this  
12 section.

13       B.   The Oklahoma Department of Agriculture, Food, and Forestry  
14 shall produce a warning label and shall make that warning label  
15 available to all producers selling raw or unpasteurized milk through  
16 the Department's website. The warning label shall include  
17 statements that are substantially similar to the following:

18       1.   Raw (unpasteurized) milk and raw milk products are not  
19 licensed, regulated, or inspected and may contain harmful bacteria  
20 that can cause serious illness; and

21       2.   Pregnant women, unborn babies, children, the elderly, and  
22 people with weakened immune systems are at higher risk of serious  
23 illness from consuming raw milk.  
24

1 C. Every producer of raw or unpasteurized milk shall affix the  
2 warning label described in subsection B of this section prior to the  
3 sale or distribution of such milk or milk products.

4 D. The Department shall promulgate rules necessary to implement  
5 the provisions of this section including, but not limited to, the  
6 size, placement, and content of the warning label.

7 SECTION 3. AMENDATORY 2 O.S. 2021, Section 7-414, is  
8 amended to read as follows:

9 Section 7-414. A. The provisions of the Oklahoma Milk and Milk  
10 Products Act shall not be construed to:

11 1. Include incidental sales of ungraded raw milk or raw milk  
12 products directly to consumers at the farm where the ungraded raw  
13 milk or raw milk products ~~is~~ are produced;

14 2. Preclude the advertising of the incidental sale of goat  
15 milk; ~~and~~

16 3. Preclude the advertising of the sale of ungraded raw milk  
17 and raw milk products; and

18 4. Prohibit any farmer or producer from making cheese using  
19 milk or cream produced on the farm of such farmer or producer.

20 B. For purposes of this section, incidental sales of ~~goat~~ milk  
21 are those sales where the average monthly number of gallons sold  
22 does not exceed ~~one hundred (100)~~ one thousand five hundred (1,500).

23 SECTION 4. It being immediately necessary for the preservation  
24 of the public peace, health or safety, an emergency is hereby

1 declared to exist, by reason whereof this act shall take effect and  
2 be in full force from and after its passage and approval.  
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4 COMMITTEE REPORT BY: COMMITTEE ON ENERGY AND NATURAL RESOURCES  
5 OVERSIGHT, dated 04/13/2026 - DO PASS.  
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